



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 07, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11517
(THIRTEENTH REVISION)

EXPIRATION DATE: 2026-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Clariant Corporation
Charlotte, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 3 and Class 8 materials in multiple non-DOT specification portable tanks manifolded together within a frame and securely mounted on a truck chassis. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.201, 173.203, 173.241, 173.242, and 173.243 in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Clariant Corporation dated June 15, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022064816

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable liquids, n.o.s. (Class 3 liquids having a vapor pressure less than 16 psia at 130°F)	3	UN1993	I, II or III
Corrosive liquids, n.o.s. (Class 8 liquids which are corrosive to skin only and which are compatible with the tank and its appurtenances)	8	Various	I, II or III

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a group of sixty (60) gallon capacity, non-DOT specification stainless steel portable tanks manifolded together within a frame, having top and bottom openings. In addition, each portable tank must conform with DOT Specification 57 in all respects except for specification marking and water capacity. Sight glasses are authorized. Each sight glass must have shut-off valves, top and bottom, and be provided with adequate protection to prevent accidental breakage.

b. TESTING: Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; and (ii) reinspected and retested once every two years in accordance with § 180.605 as prescribed for DOT Specification 57 portable tanks at a minimum pressure of 10 psig.

c. OPERATIONAL CONTROLS:

(1) Each tank must be filled so as not to be liquid full at less than or equal to 130 °F. Sight glass shut- off valves must be secured during transportation.

(2) Under this special permit-

(i) No more than six (6) portable tanks may be manifolded together within a frame.

(ii) No portable tank may exceed 60 gallons capacity each.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Shippers using the packaging covered by this special permit must comply with all provisions of this special permit, and all other applicable requirements contained in 49 CFR Parts 171-180.

d. MARKING: Each manifolded unit must be plainly marked on both sides near the middle in letters at least two inches in height on a contrasting background, "DOT-SP 11517". Marking and placarding requirements specified for cargo tanks in 49 CFR Part 172, Subpart D and Subpart F, must be met.

e. No new construction is authorized.

f. The prototype test on this tank assembly design will serve to qualify smaller tank assembly designs made of the same material and thickness, by the same fabrication technique, and with identical supports and equivalent closures and other appurtenances. A drawing showing the arrangement of the smaller tank assembly design must be on file with the Office of Hazardous Materials Special Permits and Approvals prior to the first shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG